IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-503
CP (CAA) No. 15/230/232/ND/2020

IN THE MATTER OF:
AKSS Engineers Pvt. Ltd. and Sampark Laminators Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 08.12.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Arun Saxena and Ms. Nalini Advocates
For the Respondent : Easha Kadian, Sanjay Kumar, Standing Counsels for Income Tax Department along with Himanshu, Adv., Hemlata Rawat for OL, Adv. Aarohi for RD

ORDER

Ld. Counsel appearing for the RD submits that she has not received the copy of response submitted by the petitioner, whereas the petitioner submits that he had already sent the response on 14.08.2021 to the RD. Therefore, the petitioner is directed to serve the copy of the response to the reply to the RD's counsel on her email ID by tomorrow. Ld. Counsel for the RD is directed to share her email ID to the petitioner's counsel in course of the day.

Ld. Counsel for the OL submits that he has already filed the reply on 29.09.2021 but it is not reflected on DMS, therefore, the OL's counsel is directed to get it verified from the registry, if any defect is pointed out, remove the same, so that it may be uploaded. The Income Tax Department has not submitted the report. Last opportunity is being given to file the report.

We notice that the RD in its reply made an observation that the petitioner company may be directed to seek approval for the Reserve Bank of India for sanctioning the scheme. Although the Ld. Counsel appearing for the petitioner opposed this contention of the RD on the ground that the petitioner Company is not deemed NBFC and in this regard, he referred to the paragraph 4 of the response filed by the petitioner.

Considering this, before deciding this issue, we think it proper to issue notice upon the RBI. Let the notice be issued upon the RBI by all modes including the email Id of the RBI. Affidavit of service be filed within a week from today annexing all the documents. List the matter on **04.01.2022.**

-Sd-

(AVINASH K. SRIVASTAVA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

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